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Case Number: 25NNCV07128 Hearing Date: July 16, 2026 Dept: T

Baillie

Lumber Co., L.P., a Delaware Limited Partnership vs. Golden Bear Lumber, Inc., a California Corporation, et al.

Motion

to Substitute Anita I. Tam, Personal Representative of the Estate Of Daniel Siucheung Ho, for Decedent Defendant

Moving Party: Plaintiff

Baillie Lumber Co., L.P., a Delaware limited partnership doing business as American Lumber Company

Responding Party: None

Tentative Ruling: Grant

BACKGROUND

On October 7, 2025, Plaintiff Baillie Lumber Co., L.P., a Delaware limited partnership doing business as American Lumber Company ("Plaintiff") filed a complaint against Defendants Golden Bear Lumber, Inc., a California Corporation, Daniel Ho, individually and doing business as Golden Bear Lumber, Calvin Reiten, individually and doing business as Golden Bear Lumber, and Zhaoguo Fu, individually and doing business as Golden Bear Lumber, and Does 1 through 20, alleging the following causes of action: (1) breach of contract; (2) goods sold and delivered; (3) account stated; and (4) open book account.

In April of 2026, Plaintiff first

learned that Mr. Ho ("Decedent Defendant" or "Decedent") had passed away on June 18, 2025, through email correspondence received from counsel for Anita I. Tam, the personal representative of Defendant Decedent's estate ("Tam").

Plaintiff now moves to substitute
Tam for Decedent Defendant in this action.

No opposition was filed.

MOVING PARTY POSITION

Plaintiff
argues that the Court must substitute Tam as a party defendant in this action, pursuant to Code of Civil Procedure section 377.41, as Tam is the personal representative of Decedent's estate, and as Plaintiff timely and properly filed a creditor claim that was rejected by operation of law based on refusal or neglect in responding to its claim.

OPPOSITION

No
opposition was filed.

REPLY

No
reply was filed.

ANALYSIS

I.
Legal
Standard

Code
of Civil Procedure; Section 377.41 provides that "[o]n motion, the court shall allow a pending action or proceeding against the decedent that does not abate to be continued against the decedent's personal representative or, to the extent provided by statute, against the decedent's successor in interest,

except that the court may not permit an action or proceeding to be continued against the personal representative unless proof of compliance with Part 4 (commencing with Section 9000) of Division 7 of the Probate Code governing creditor claims is first made.” (Code Civ. Proc. § 377.41.)

Probate

Code section 9370(a) provides that “[a]n action or proceeding pending against the decedent at the time of death may not be continued against the decedent’s personal representative unless all of the following conditions are satisfied:

- (1) A claim is first filed as provided in this part.
- (2) The claim is rejected in whole or in part.
- (3) Within three months after the notice of rejection is given, the plaintiff applies to the court in which the action or proceeding is pending for an order to substitute the personal representative in the action or proceeding. This paragraph applies only if the notice of rejection contains a statement that the plaintiff has three months within which to apply for an order for substitution.”

If

the filing of a creditor’s claim is required to continue an action against the decedent’s personal representative, the plaintiff must also provide proof of his or her compliance with Section 9370(a), as “[n]o recovery shall be allowed in the action against property in the decedent’s estate unless proof is made of compliance with this section.” (Prob.

Code § 9370, subd. (b).)

“If

within 30 days after a claim is filed the personal representative or the court or judge has refused or neglected to act on the claim, the refusal or neglect may, at the option of the creditor, be deemed equivalent to giving a notice of rejection on the 30th day.” (Prob. Code § 9256.)

II. Request

for Judicial Notice

Per Plaintiff’s request, the Court takes notice of the exhibited

letters testamentary filed in the probate action in Los Angeles County Superior Court entitled Estate of Daniel Siucheung Ho, bearing Case No. 25STPB14431. (Evid. Code § 452, subd. (d).) In addition, the Court on its own motion takes notice of the records filed in this probate action. (Ibid.)

III. Discussion

On April 21, 2026, Plaintiff served its creditor's claim on Decedent's personal personal representative, Anita I Tam. (Hirahara Decl. ¶ 8, Exh. 4.) Based on counsel's declaration, and upon review of the probate court's records, no response has been made to this claim within 30 days. (Id. ¶ 9.) As a result, the Court deems this refusal or neglect in responding to Plaintiff's creditor claim as equivalent to giving a notice of rejection on the 30th day. (Prob. Code, § 9256.) Accordingly, Plaintiff has shown that its creditor's claim was neither affirmed nor denied within 30 days of filing. Thus, the Court finds that Plaintiff has sufficiently complied with Probate Code § 377.41 to warrant the requested substitution.¿¿

Therefore,
the motion to substitute is granted.

RULING

Plaintiff's

Motion to Substitute Anita I. Tam, Personal Representative of the Estate Of

Daniel Siucheung Ho, for Decedent Defendant is GRANTED. Plaintiff to file an amendment to the complaint (Form SCLAC CIV 105). Plaintiff to give notice.